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UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA
OAKLAND DIVISION

RIVER VALLEY SUPPLY CO.,
Plaintiff,

v.

ACME WIDGETS, INC.,
Defendant.

Case No. 3:26-cv-01234-ABC

NOTICE OF MOTION AND MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM

Date: Thursday, December 10, 2026
Time: 1:30 p.m.
Place: Courtroom 2, 4th Floor
Hon. Example Judge

NOTICE OF MOTION

PLEASE TAKE NOTICE that on Thursday, December 10, 2026, at 1:30 p.m., or as soon thereafter as the matter may be heard, in Courtroom 2, 4th Floor, Defendant Acme Widgets, Inc. will move under Federal Rule of Civil Procedure 12(b)(6) to dismiss the complaint for failure to state a claim. The motion rests on this notice, the memorandum below, the pleadings and records on file, and any argument the Court hears.

RELIEF SOUGHT

Defendant asks for an order dismissing the complaint.

ISSUE TO BE DECIDED

Whether the complaint states a plausible claim for breach of contract.

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

Plaintiff alleges that Defendant breached a supply agreement, but the complaint never identifies the term Defendant is said to have broken. A claim that names no promise does not cross the line from conceivable to plausible.

II. STATEMENT OF FACTS

The parties signed a one-year supply agreement in 2025. Plaintiff alleges that some deliveries arrived late. The complaint does not attach the agreement, quote it, or say which delivery dates it set.

III. ARGUMENT

A. The Complaint Pleads No Breached Term

A complaint must contain enough facts to state a claim to relief that is plausible on its face. *Twombly*, 550 U.S. at 570. Labels and conclusions do not suffice, and the Court need not accept legal conclusions couched as facts. *Iqbal*, 556 U.S. at 678. A

breach of contract claim needs the contract's terms; without them, the Court cannot infer that any conduct breached one.

B. Leave to Amend Should Be Limited

If the Court grants leave to amend, Plaintiff should be directed to plead the term it relies on and the facts of its breach.

CONCLUSION

The Court should grant the motion and dismiss the complaint.

Dated: November 5, 2026

Respectfully submitted,

/s/ Jordan A. Example
Jordan A. Example
SAMPLE & PARTNERS LLP
Attorneys for Defendant Acme Widgets, Inc.